

profitable, and owners were taking on even more slaves to work them. The colony passed “an act for the better ordering and governing of Negroes,” which for the first time enshrined in law the subjugation of plantation slaves to the will of their masters. Other Caribbean colonies, such as Jamaica and Antigua, and all Southern American colonies followed suit, establishing their own official slave codes. Virginia took the lead by following the Barbados model and in turn influenced the codes of Maryland, North Carolina, South Carolina, and Georgia.

Less than human

As well as providing an escalating scale of punishment for a slave who offered “violence to any Christian,” the 1661 Barbados slave code set out another purpose—to “protect [slaves] as we do men’s other goods and chattels.” Under the guise of looking after the interests of slaves, the aim of the code was to ensure a master’s total control. As “chattel,” slaves were part of his personal property to be bought and sold like



Slaves are generally expected to sing as well as to work.

Frederick Douglass

Human rights leader and former slave (1818–1895)



animals rather than afforded rights as individual human beings. A Virginia code of 1705 went beyond “chattel,” replacing it with the term “real estate.” This made slaves the property not only of the master, but also of his descendants.

Masters could enforce slave codes in many ways. Whipping, branding, and imprisonment were common. Killing was rare because slaves only had value while alive, although there was no punishment

for a master who overstepped even that mark. According to another 1705 Virginia code, any master who killed a slave while “correcting” that slave “shall be free of all punishment ... as if such accident had never happened.” Later laws applied some restrictions on the actions of slave owners, but even if a master were found guilty, often the best the slave could hope for was to be sold to someone kinder.

Limiting basic freedoms

With the growth of Southern cities, such as Charleston in South Carolina and Lyndhurst in Virginia, opportunities for labor increased and owners began to hire out slaves for profit. Such slaves had to carry a permit or wear a copper slave tag to prove they had their owners’ permission to travel. In New York and elsewhere, harsh penalties were imposed if slaves walked the streets at night or congregated together.

Until the 1830s, a slave could be taught to read or write, but after the Nat Turner slave rebellion in 1831 (see box, opposite), most slave states banned such teaching. In Virginia, statutes passed in 1831 and 1832 even banned education for freed slaves. Slaves had no legal right to get married but were often allowed to do so. Many owners believed that married slaves were more likely to be settled and less likely to rebel. Slave marriages also produced more children and so boosted slave numbers. Any married slave, however, had to be prepared for the break-up of a family when at any time a wife, husband, or child might be sold to another owner.

In a newspaper notice of 1769, future US president Thomas Jefferson offers a reward for the capture of a slave. Most of America’s Founding Fathers, like Jefferson, were slave owners.



RUN away from the subscriber

in *Albemarle*, a Mulatto slave called *Sandy*, about 35 years of age, his stature is rather low, inclining to corpulence, and his complexion light; he is a shoemaker by trade, in which he uses his left hand principally, can do coarse carpenters work, and is something of a horse jockey; he is greatly addicted to drink, and when drunk is insolent and disorderly, in his conversation he swears much, and in his behaviour is artful and knavish. He took with him a white horse, much scarred with traces, of which it is expected he will endeavour to dispose; he also carried his shoemakers tools, and will probably endeavour to get employment that way. Whoever conveys the said slave to me, in *Albemarle*, shall have 40 s. reward, if taken up within the county, 4 l. if elsewhere within the colony, and 10 l. if in any other colony, from

THOMAS JEFFERSON.